Activity 1: Board Duties and Governance Gap Scan

Mapping: K1, A1 / LO1

Duration: 25 minutes

Deliverable: One-page governance gap scan and two-minute board briefing.

Goal

Identify director, record, reporting and register gaps; distinguish tasks that may be outsourced from accountability that remains with directors.

Real Case Study

Case: Robert Sinpraseuth - false director-appointment filings

Date: 18 May 2026

Status: Convicted and sentenced in the State Courts

Official source: ACRA - Individual fined $108,000 for authorising false filings

Published Facts

ACRA reported that Robert Sinpraseuth authorised a corporate service provider to lodge forms across 12 companies falsely declaring that an individual had consented to be appointed as director. He was convicted on 12 charges and fined a total of $108,000; 12 similar charges were considered for sentencing.

Exercise Boundary

Use only the published ACRA facts as case evidence. The control redesign and board response are learner recommendations, not facts found by the court.

Questions

1. What should an authorising person have verified before the 12 filings?
2. Which consent, review and approval evidence should have existed?
3. What immediate review should the affected companies undertake?
4. What maker-checker and director-oversight controls would prevent recurrence?

Detailed Step-by-Step

1. Read the official case summary once for the chronology and again for the control failures.
2. Create four columns: Requirement, Current fact, Gap/risk, Evidence needed.
3. Map each fact to ACRA director, financial-reporting or register guidance.
4. Classify each response as contain now, correct within deadline, or strengthen for future cycles.
5. Prepare a two-minute board briefing that states the issue, decision, owner and deadline.

6. Peer-review another group's response for unsupported assumptions or missing director challenge.

Worksheet

Requirement / issue	Business fact	Gap or impact	Decision / control	Owner	Deadline	Evidence

Acceptance Check

- ■ All material facts mapped
- ■ Director accountability stated correctly
- ■ Owners/deadlines named
- ■ Evidence requirements explicit

Debrief

- What assumption had the greatest effect on your recommendation?
- What evidence would a director, auditor or regulator expect to see?
- What would you verify with qualified legal, tax or sector advice?

Sources

- ACRA - Individual fined $108,000 for authorising false filings
- ACRA - Company directors' duties & key obligations
- ACRA - Financial reporting duties for directors
- ACRA - Company registers: requirements & deadlines

Educational activity only; verify current requirements with the relevant regulator and qualified advisers.

Real-Life Case Brief: Robert Sinpraseuth

Regulator: Accounting and Corporate Regulatory Authority (ACRA)

Published: 18 May 2026

Procedural status: Convicted and sentenced in the State Courts

Verified: 12 August 2026

Regulator-Published Facts

- Robert Sinpraseuth authorised a corporate service provider to lodge false director-appointment filings across 12 companies.
- The filings falsely declared that an individual had consented to act as director.
- He was convicted on 12 charges and fined $108,000; 12 similar charges were considered for sentencing.

Classroom Boundary

These facts are the real-life case anchor. Any proposed maker-checker workflow, board response, deadline or remediation plan is a learner recommendation, not a court finding.

Official Evidence

ACRA - Individual fined $108,000 for authorising false filings

Completion Checklist: Director Filing Governance

- Confirm the proposed director's identity and written consent before filing.
- Record who prepared, checked, authorised and lodged each filing.
- Reconcile filing data to signed source records.
- Escalate any inconsistency before submission.
- Separate the service provider's task from directors' continuing accountability.
- Assign an owner and deadline for correcting affected records.
- Retain consent, review, approval and lodgement evidence.
- Label learner assumptions and recommendations separately from case facts.